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Defendant Supertaok, LLC's Motion for Leave to File Cross-Complaint

Respondent: Plaintiffs Jacky Loung Ching Cheng and Jacky L. Cheng

TENTATIVE RULING

Defendant Supertaok, LLC's Motion for Leave to File Cross-Complaint is GRANTED.

Defendant Supertaok, LLC is ORDERED to FILE SEPARATELY forthwith the proposed CROSS-COMPLAINT.

BACKGROUND

This is a trespass action. In August 2022, plaintiff Jacky Loung Ching Cheng (Cheng) allegedly purchased residential real property in Walnut, California. In April 2023, Cheng allegedly transferred title of the property to the Jacky Cheng Family Trust (the Cheng Trust), of which he is the trustee. (The Complaint refers to Cheng as an individual and as a trustee of the Cheng Trust as the collective "Plaintiffs." For the sake of simplicity, the court only refers to Cheng as an individual.) In November 2023, defendant Supertaok, LLC (Supertaok) allegedly purchased adjacent undeveloped real property. In May and June 2024, Supertaok's agents, defendant Siguo Su (Su) and nonparties David Su and Daisy Yun Zhao, allegedly obstructed Cheng's access to easements on his property by placing a recreational vehicle and a chain-link fence. In early July 2025, a private land surveyor allegedly placed survey markers and prepared a survey confirming that the fence encroached and interfered with the easement. Supertaok and Su (collectively, Defendants) allegedly disputed the survey and moved the survey markers. In late July 2025, an inspector from nonparty City of Walnut allegedly confirmed the accuracy of the private land surveyor's survey to Cheng and Defendants. In August and September 2025, Defendants allegedly moved and removed the survey markers. Defendants allegedly continue to refuse to remove the chain-link fence.

On December 30, 2025, Cheng filed the Complaint, alleging causes of (1) trespass, (2) private nuisance, (3) injunctive relief by removal of encroachment, (4) injunctive relief by refraining from trespassing and encroachment, (5) quiet title, (6) declaratory relief, and (7) intentional infliction of emotional distress.

On July 21, 2026, Supertaok filed this motion for leave to file cross-complaint. On August 6, 2026, Cheng filed the opposition, and on August 12, 2026, Supertaok filed the reply.

The motion is set for hearing on August 19, 2026.

ANALYSIS

Supertaok moves to file a proposed Cross-Complaint. For the following reasons, the motion is GRANTED.

Legal Standard

"A party shall file a cross-complaint against any of the parties who filed the complaint or cross-complaint against [them] before or at the same time as the answer to the complaint or cross-complaint." (Code Civ. Proc., § 428.50, subd. (a).) Furthermore, "[a]ny other cross-complaint may be filed at any time before the court has set a date for trial." (Code Civ. Proc., § 428.50, subd. (b).) If a cross-complaint is not filed within these guidelines, it may only be filed with leave of the court, who may grant it "in the interest of justice at any time during the course of the action." (Code Civ. Proc., § 428.50, subd. (c).)

A cross-complaint is compulsory when a related cause of action existed at the time of serving the defendant's answer to the complaint. (See Code Civ. Proc., § 426.30, subd. (a); see also *Crocker Nat. Bank v. Emerald* (1990) 221 Cal.App.3d 852, 864.) A "[r]elated cause of action" means "a cause of action which arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause of action which the plaintiff alleges in [their] complaint." (Code Civ. Proc., § 426.10, subd. (c).) Leave must be granted to file a compulsory cross-complaint when the defendant is acting in good faith. (See Code Civ. Proc., § 426.50.)

Discussion

For the court to grant leave to file a compulsory cross-complaint, the moving party must demonstrate that the proposed cross-complaint (1) asserts a related cause of action and (2) is brought in good faith. Supertaok argues that the proposed Cross-Complaint asserts related causes of action. The court agrees.

The statute defines "related cause of action" as "a cause of action which arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause of action which the plaintiff alleges in [their] complaint." (Code Civ. Proc., § 426.10, subd. (c).) The court finds that Supertaok satisfies its burden of demonstrating the claims in the proposed Cross-Complaint arise from the same series of occurrences as the Complaint and deal with the identical parties. (Compare *Compl. with Mot., Exh. A*.) Therefore, the proposed Cross-Complaint asserts related causes of action.

Supertaok also argues that the proposed Cross-Complaint is brought in good faith. The court agrees.

"[W]hat constitutes 'good faith'—or lack of it—under Code of Civil Procedure Section 426.50 must be determined in light of and in conformity with the liberality conferred upon the trial courts by the section and by prior law. . . . [T]his principle of liberality requires that a strong showing of bad faith be made in order to support a denial of the right to file a cross-complaint under this section." (*Foot's Transfer & Storage Co. v. Super. Ct.* (1980) 114 Cal.App.3d 897, 902.) A determination of bad faith may be premised on "substantial injustice or prejudice" to the opposing party. (*Id.* at 903; see also *Gherman v. Colburn* (1977) 72 Cal.App.3d 544, 560, fn. 9, stating that leave to file a cross-complaint was properly denied where a defendant's motion "was merely a tactical strategic maneuver to deprive plaintiffs of a right to a jury trial.")

Cheng contends in opposition that the motion is late because Supertaok "knew of every alleged act, and demanded that each stop, before this action was filed." (*Opp.*, p. 11.) However, even if a defendant fails to comply with the obligation to file a compulsory cross-complaint when they file an answer, absent a strong showing of bad faith, the court cannot deny leave to file a compulsory cross-complaint. (See *Foot's Transfer & Storage Co.*, *supra*, 114 Cal.App.3d at 902.)

According to Cheng, the delay appears “calculated to maximize their settlement effect,” but Cheng fails to explain how it would do so. (Opp., p. 13.) Cheng cites Supertaok’s conduct as it relates to the stipulated preliminary injunction, but that is irrelevant to the court’s analysis on this motion, which focuses on whether the motion for leave to file a cross-complaint is brought in bad faith, not whether the moving party engaged in bad faith generally. (See Gherman, supra, 72 Cal.App.3d at 560, fn. 9.)

Finally, the court notes that Cheng does not contend that he is prejudiced by the proposed Cross-Complaint and even suggests that certain conditions would “prevent injustice.” (Opp., p. 15.) Under these circumstances, the court finds there is no showing of bad faith. Therefore, the proposed Cross-Complaint is brought in good faith.

Accordingly, the motion for leave to file a cross-complaint is GRANTED.

CONCLUSION

For these reasons, the motion for leave to file cross-complaint is GRANTED.

Defendant Supertaok, LLC is ORDERED to FILE SEPARATELY forthwith the proposed CROSS-COMPLAINT.